English translations of cited references

Reparation, restoration, sanctions and harm

Selections identified in the Referencia column of Datos y Literatura.xlsx.

Source reference workbook

Concept	Spanish source and selection
Reparation	SENIT 8 of 2025 - printed pp. 27-29; p. 30 supplement completing paragraph 67 and including cited paragraph 68.
Restoration	Restorative Transitional Justice Manual (JEP, 2024) - printed pp. 29-30, 38 and 46.
Sanctions	Law 1957 of 2019 - Articles 125-126, printed p. 34.
Harm	Order TP-SeRVR-RC-AI-No.001-2026, Catatumbo - printed pp. 792-793, including paragraphs 1947-1949.

Original page, paragraph, article and footnote numbers are retained. Labeled context from adjoining pages completes selected passages. Section notes identify source ambiguities and the SENIT page-range correction.

Translated from Spanish by four parallel LLM translators, followed by checks against the original PDFs and a consistency review.

Each section opens with a detailed summary of the cited selection. Summaries explain the argument, legal distinctions and relationships among the four concepts. Source page and paragraph references accompany the summaries.

1. Reparation

SENIT 8 of 2025 | Printed pp. 27-29, plus paragraph 68 and the completion of paragraph 67 on p. 30

Original Spanish PDF

Summary of the cited selection

Reparation as a right and a continuing obligation

The Appeals Section explains reparation through three connected legal roles: a principle of the peace system, a fundamental right of victims, and an obligation of those who caused harm in connection with the armed conflict. The peace agreement combines satisfaction of victims' rights with ending the conflict and preventing its repetition. Access to special criminal treatment depends on contributions to those purposes, and the JEP verifies compliance with the corresponding conditions. The selection develops the meaning of the obligation to contribute to reparation within that arrangement. (Printed pp. 27-29, paragraphs 58-59 and 64.)

The breadth of the right and the distribution of resources

The judgment connects reparation to victims' dignity and to their rights to truth and justice. It identifies restitution, compensation, rehabilitation, satisfaction, and guarantees of non-repetition as forms through which the right becomes concrete. The needs addressed can be individual or collective and can involve material, moral, and symbolic dimensions. The form of reparation should respond to the characteristics of the people and communities affected. (Printed p. 28, paragraphs 61-62.)

Mass victimization creates practical questions about how resources should be distributed. The judgment discusses the difficulty of applying individual full-compensation standards across a large population of victims and cites the experience of Peru's reparations program. Its reasoning preserves the breadth of the right while explaining why a mass program requires a distribution model that can reach victims fairly. The constitutional provision reproduced in footnote 80 calls for equality of access, equity in allocating available resources, and priority for people entitled to special constitutional protection. (Printed pp. 28-29, paragraphs 63 and 66; footnote 80.)

The State's duty and appearing parties' contributions

The State must guarantee reparation through public institutions and policies. The peace agreement builds on the existing victims' assistance and reparation system and connects it with programs such as land restitution, territorial development, and collective reparation. Those institutional responsibilities provide the setting in which the contributions of appearing parties must operate. (Printed pp. 29-30, paragraphs 65-67.)

Paragraph 68 describes two practical forms of contribution by actors in the conflict. One consists of collective acknowledgment of responsibility and public requests for forgiveness, accompanied by commitments to concrete reparative action. The other consists of concrete actions whose design and promotion involve the National Government. The constitutional provisions reproduced in footnote 81 retain duties to clarify the truth, contribute to reparation, and guarantee non-repetition for beneficiaries of the specified criminal-law treatments; the provision concerning members of the Public Force expressly describes their reparative contribution as non-monetary. (Printed p. 30, paragraph 68 and footnote 81.)

Reading implication

A reparative commitment can be examined by identifying the harm it addresses, the victim right or remedy involved, and the actor responsible for carrying it out. The State's duty to guarantee reparation and an appearing party's duty to contribute remain distinct responsibilities within the same institutional arrangement.

Citation correction: Paragraph 68 is on printed page 30. The translated supplement includes that paragraph and completes paragraph 67, which begins on page 29.

1. Reparation

Original Spanish PDF

Interpretive Judgment TP-SA SENIT 8 of 2025

Translation and source scope

Complete translation of printed source pages 27-29. The source citation also identifies paragraph 68, which appears on printed page 30. A clearly marked supplement below therefore completes paragraph 67 and includes paragraph 68 and its footnote 81 from page 30. Printed page 27 begins in the middle of paragraph 57; printed page 29 ends in the middle of paragraph 67.

Source: Special Jurisdiction for Peace (JEP), Peace Tribunal, Appeals Section, *Interpretive Judgment TP-SA SENIT 8 of 2025*, April 24, 2025. Source document.

Source acronyms are retained: AFP, Final Peace Agreement; SIP, Comprehensive Peace System; AL 1/17, Constitutional Amendment 01 of 2017; LEJEP, Statutory Law of the JEP (Law 1957 of 2019); RC, conditionality regime; CANI, non-international armed conflict; DIH, international humanitarian law; SA, Appeals Section. TOAR means Works, Projects and Activities with Reparative and Restorative Content.

Source page 27

APPEALS SECTION CASE FILE: 0000195-37.2024.0.00.0001 **MATTER:** ENROLMENT IN THE "SIEMBRAS DE VIDA" TOAR PROJECT

[Paragraph 57, continued from source page 26]

victims' rights".[68] These two objectives, the satisfaction of victims' rights, on the one hand, and the cessation and non-repetition of the conflict, on the other, are aims of equal weight and importance. Accordingly, all mechanisms and measures comprising the SIP must be directed towards consolidating "maximum justice and accountability for the human rights violations and breaches of DIH that occurred throughout the conflict".[69]

58. To achieve these objectives, the AFP and AL 1/17 provided for a set of incentives that shape special criminal-law treatments, both punitive and non-punitive. Thus, to gain access to these criminal-law treatments, appearing parties must meet a series of conditions relating to their contribution to satisfying victims' rights. These considerations safeguard the realization of the rights to truth, guarantees of non-repetition of violations, and reparation. As the justice component of the SIP, the JEP bears the duty to verify compliance with those conditions.

59. However, in contrast to appearing parties' duty to provide the truth[70] and to guarantee non-repetition,[71] the duty to contribute to reparation for victims is not precisely defined in either the AFP or its implementing legislation. This is the case both for the restorative component of own sanctions (sanciones propias), beyond the list of activities envisaged in the AFP and incorporated into Law 1957 of 2019 (LEJEP), and for the obligation of appearing parties to make reparation under the conditionality regime (RC) applicable to them. It is therefore necessary to delimit the scope of appearing parties' obligation to contribute to that reparation, as well as the legal framework that develops it. To that end, the SA will examine three relevant thematic elements, namely: (i) the State's duty to make reparation to victims of the CANI; (ii) the public-policy framework that enables this obligation to be fulfilled; and, finally, (iii) the scope of the duty of those appearing before the JEP to make reparation. The SA will highlight the cross-cutting nature of reparation to show how its examination must be holistic. That is, it must take account of all institutional activity directed towards satisfying victims' rights, rather than concentrating on individual acts of reparation that take place at a particular institutional time and place.

(i) Reparation for victims in transitional contexts, in the SIP and in the JEP

68. Final Peace Agreement. Point 5.1.

69. Final Peace Agreement. Point 5.1.

70. The duty to provide the full truth is defined in the Constitution as the obligation to "[…] give an exhaustive and detailed account, when the elements necessary to do so are available, of the conduct committed and the circumstances in which it was committed, as well as the information necessary and sufficient to attribute responsibility, thereby guaranteeing the satisfaction of victims' rights to reparation and non-repetition. The duty to provide the truth does not entail an obligation to accept responsibility". (AL 1/17, Art. 5).

71. According to the Statutory Law of the JEP, the duty to guarantee non-repetition includes the obligation to "refrain from committing new intentional crimes […]". (LEJEP, Art. 20).

Source page 28

APPEALS SECTION CASE FILE: 0000195-37.2024.0.00.0001 **MATTER:** ENROLMENT IN THE "SIEMBRAS DE VIDA" TOAR PROJECT

60. Unlike isolated or exceptional human rights violations, in transitional settings that seek to overcome an internal armed conflict involving massive human rights violations and breaches of DIH, a vast number of victims, and a vast number of responsible persons as well, it is not possible to adopt a maximalist approach to guaranteeing victims' rights to truth, justice and reparation.[72] In this regard, the Constitutional Court has stated that "[t]he rights of victims to truth, justice, reparation and non-repetition (…) must be guaranteed by the State, although in transitional settings it is permissible, in this latter case, to make some aspects more flexible, such as retributive justice (through recourse to criminal proceedings) and individual judicial truth; nevertheless, in such cases the other aspects must be strengthened".[73]

61. With regard to reparation, the Section reiterates its centrality in transitional processes. Moreover, reparation is regarded as a fundamental right because: "1) it seeks to restore the dignity of victims whose constitutional rights have been violated; and 2) it is a complex right interrelated with truth and justice, which translates into concrete claims for restitution, compensation, rehabilitation, measures of satisfaction and non-repetition".[74]

62. Indeed, although restrictions on victims' rights to justice or truth in transitional contexts appear necessary to guarantee the transition towards peace, the right to reparation is not limited to some of its aspects; instead, its comprehensive nature is reinforced. Law 1448 of 2011 itself, which defines an administrative model of reparation based on the transitional context, establishes that "victims must receive adequate, differentiated, transformative and effective reparation for the harm they have suffered (…) and that reparation encompasses measures of restitution, compensation, rehabilitation, satisfaction and guarantees of non-repetition, in their individual, collective, material, moral and symbolic dimensions, seeking to satisfy the needs of each victim, understanding their unique characteristics as a group and as an individual".[75]

63. However, the importance of the right to reparation in these settings does not mean that its monetary component is equivalent to the judicial standard of full compensation for the harm suffered, quantifying all its aspects, such as actual loss and lost profits. In this regard, the Constitutional Court stated:

> [A] mass reparations programme structured around the traditional paradigm is not only economically unviable, but may also generate significant and serious distortions in the distribution of resources among victims, and between victims and other sectors of society. Thus, in comparative contexts, the Inter-American Court of Human Rights' average compensation amounts and standards for relatives of deceased persons, structured under the model of episodic violations

[The quotation continues on source page 29.]

72. The Office of the United Nations High Commissioner for Human Rights has also expressed the same view in documents such as "Rule-of-Law Tools for Post-Conflict States: Reparations Programmes." United Nations. New York and Geneva. 2008 HR/PUB/08/01.

73. Constitutional Court, Judgment C-007 of 2018.

74. Constitutional Court, Judgment C-753 of 2013.

75. Law 1448 of 2011, Article 25.

Source page 29

APPEALS SECTION CASE FILE: 0000195-37.2024.0.00.0001 **MATTER:** ENROLMENT IN THE "SIEMBRAS DE VIDA" TOAR PROJECT

[Paragraph 63, quotation continued from source page 28]

> of rights, would have made reparation for victims in Peru impossible, even if that country's entire national budget had been devoted to it for several decades. For that reason, the scheme adopted by Peru's Truth and Reconciliation Commission was structured on substantially different foundations. In other words, the "maximalist" model may not be achievable in transitional contexts.[76]

64. The reparation component of the SIP defined by the AFP is constructed within this framework. As the Constitutional Court has affirmed in its case law, public policy on reparation for victims of the CANI was, from its inception, conceived as an essential element of peacebuilding in Colombia.[77] For that reason, the AFP and, as part of its legislative implementation, AL 1/17 incorporated reparation in three distinct senses: (i) as a basic principle of the SIP, according to which "reparation must be made for the harm caused and restoration provided where possible";[78] (ii) as a fundamental right of victims; and (iii) as an obligation of "all those who have caused harm in connection with the conflict".[79]

65. Following the signing of the AFP, AL 1/17 introduced into the Constitution the general framework on reparation for victims that governs the SIP and, in particular, the JEP. Thus, on the one hand, it established the Colombian State's duty to guarantee comprehensive reparation for victims within the SIP and, on the other, it defined the scope and limits of the contribution of actors in the internal armed conflict who appear before the JEP to reparation for the serious human rights violations and breaches of DIH for which they are responsible.

66. As to the first matter, transitional Article 18[80] established that "comprehensive reparation shall be guaranteed by the State in a comprehensive, adequate, differentiated and effective manner". This obligation must be read in light of the AFP, which set out a series of "Comprehensive reparation measures for peacebuilding" in sub-point 5.1.3, and focused on agreeing on a "process of strengthening and adapting the Policy on Assistance and Comprehensive Reparation for Victims" that has existed since the enactment of Law 1448 of 2011, in order to extend assistance to all populations and territories, and to coordinate it with the other programmes and policies arising from the agreement.

67. That is, the AFP did not create a new reparations scheme; rather, it recognized and incorporated, as the reparation component of the SIP, the public policies and institutional framework that the country already had, particularly within the National System for Comprehensive Assistance and Reparation for Victims (SNARIV),

[Paragraph 67 continues on source page 30; its completion appears in the supplement below.]

76. Constitutional Court, Judgment C-674 of 2017.

77. Constitutional Court, Judgment C-588 of 2019.

78. Final Peace Agreement. Point 5.1.3.2. LEJEP, Art. 13.

79. Final Peace Agreement. Point 5.1.3.2. Articles 1, 4, 7, 20 and 39 of Law 1957 of 2019.

80. Political Constitution, "Transitional Article 18. Comprehensive reparation in the Comprehensive System of Truth, Justice, Reparation and Non-Repetition. Within the framework of the Comprehensive System of Truth, Justice, Reparation and Non-Repetition, the State shall guarantee the right to reparation for victims of serious human rights violations and breaches of International Humanitarian Law who have suffered harm, individually or collectively, in connection with the armed conflict. Reparation shall be guaranteed by the State in a comprehensive, adequate, differentiated and effective manner, prioritizing the distribution of reparation measures among victims, taking account of the universe of victims of the armed conflict and seeking equality of access and equity in the distribution of available resources, and giving priority in assistance to persons entitled to special constitutional protection".

Source page 30 - supplement completing paragraph 67 and including cited paragraph 68

APPEALS SECTION CASE FILE: 0000195-37.2024.0.00.0001 **MATTER:** ENROLMENT IN THE "SIEMBRAS DE VIDA" TOAR PROJECT

[Paragraph 67, continued from source page 29]

supplementing it so that it would address the new needs generated by the AFP. Among other things, this entailed coordinating that System with rural policies arising from and strengthened by the AFP, such as the Rural Development Plans with a Territorial Focus - PDET - , land restitution measures and collective reparation plans with a territorial focus, whose reparative nature was expressly recognized.

68. As to the second matter, namely the contribution of the actors in the conflict, both the paragraph appended to transitional Article 18 and transitional Article 26 of the Constitution[81] establish the duty of former combatants who benefit from special criminal-law treatments to contribute to reparation. Thus, also through an interpretation consistent with the design of the AFP, this duty is understood to take concrete form primarily in two settings: (i) early acts of collective acknowledgment of responsibility and public requests for forgiveness, including "expressing the commitment to contribute through concrete actions to comprehensive reparation for victims, coexistence, non-repetition and the peacebuilding process in general" (AFP, point 5.1.3.1); and (ii) concrete actions contributing to reparation, whose promotion and design are the responsibility of the National Government, which "shall take the necessary measures to promote participation in various reparation measures to be designed for that purpose" by those who caused harm in connection with the conflict (AFP, point 5.1.3.2).

81. "Appended paragraph. In cases in which amnesty, pardon or waiver of criminal prosecution applies, judicial proceedings for compensation of victims may not be brought against the beneficiaries of those measures. In all cases, they shall contribute to clarifying the truth and to reparation for victims, and guarantee non-repetition." // "Transitional Article 26. Exclusion of actions for recourse and third-party indemnity claims for members of the Public Force. In the case of members of the Public Force who have committed punishable conduct because of, in connection with, or directly or indirectly related to the internal armed conflict, the action for recourse and third-party indemnity claims established in Article 90 of the Political Constitution shall not be available. In all cases, they shall contribute to clarifying the truth and to non-monetary reparation for victims, and guarantee non-repetition."

2. Restoration

Restorative Transitional Justice Manual (JEP, 2024) | Printed pp. 29-30, 38 and 46

Original Spanish PDF

Summary of the cited selection

Restoration through participation and responsibility

The manual presents restorative justice as a way for people affected by wrongdoing to participate in deciding how its consequences should be addressed. Victims, responsible persons, and communities take part in a process directed toward reparation, acknowledgment of responsibility, and the rebuilding of social relationships. Within the Colombian transition, restorative justice also serves the aims of peace and reconciliation. The selection explains how these purposes enter the JEP's legal framework and its conduct of proceedings. (Printed pp. 29-30 and 38.)

A process with concrete conditions and outcomes

The manual describes restorative justice both through the process people follow and through the outcomes they seek. As a process, it requires opportunities for participation, deliberation, and communication. The conditions identified include neutral mediation, trust in the authorities, respect for the parties, and a meaningful opportunity to express aspirations, views, and available resources. Responsible persons are expected to confront their conduct and its consequences and acknowledge their responsibility. (Printed p. 30, with the labeled sentence continuation from p. 31.)

The outcomes described include reparation for victims and the restoration of relationships affected by the wrongdoing. Reading a proceeding through this account therefore involves examining how people participate and what their participation helps accomplish. A hearing's procedures, the substance of an acknowledgment, and the proposed response to harm are connected parts of the restorative process. (Printed pp. 29-30.)

Applying restorative justice to mass victimization

The JEP operates in a setting where violence has affected large numbers of people and communities. The manual identifies collective participation as a practical issue when restorative justice is applied at that scale. It places the JEP's approach within the Final Peace Agreement, constitutional provisions, procedural law, and statutory law. Those sources connect restoration with social relationships, the harm caused, and the rights of future generations. (Printed p. 38, with the labeled sentence continuation from p. 39.)

The 2024 manual reports that its jurisprudential review identified more than 1,000 decisions mentioning restorative justice, selected 35 for their substantive content, and highlighted 10 offering detailed definitions or concepts. These figures describe the manual's review and explain the basis for the account of JEP practice presented in the selection. (Printed p. 38.)

Dialogue across the course of proceedings

The decisions discussed on page 46 describe dialogue as an ongoing process that develops through successive interactions. The JEP facilitates victims' participation, acknowledgment of truth and responsibility, and the rebuilding of relationships. The account also incorporates gender, differential, and intersectional approaches. The manual links continued participation to the search for truth and reparation and describes consequences for failures to comply with restorative commitments, including expulsion in the cited case of renewed involvement in armed activities. (Printed p. 46.)

Reading implication

The selection provides a basis for examining who participates, how the institution enables dialogue, what responsibility is acknowledged, and what response to harm follows. Reparation supplies concrete responses to victims' injuries; restoration also concerns the relationships and participatory process through which those responses are pursued.

2. Restoration

Original Spanish PDF

Restorative Transitional Justice Manual

Special Jurisdiction for Peace (JEP), 2024

Selected printed pages: 29-30, 38 and 46.

Source page 29

Restorative Transitional Justice Manual - What is restorative transitional justice? - Chapter I

[Sentence continued from source page 28; added opening context is in brackets.]

[Restorative justice, in a transitional setting, requires an approach that incorporates] the full participation of all parties involved in the conflict, contributions to reparation for harm, acknowledgment of responsibility, and the return to civilian life of those who committed crimes. All of this is carried out with the primary objective of promoting peace and reconciliation in Colombia, as stipulated in the Final Peace Agreement.[22]

Before examining the link between restorative justice and transitional justice in the JEP, on the basis of its developments in law and case law, it is important to understand restorative justice in ordinary contexts in order to explain its principles and objectives. Accordingly, the following section focuses on defining restorative justice and its application in the transitional context in which the JEP operates.

Background to restorative justice

Restorative justice offers an alternative to the punitive approach of traditional criminal justice. Instead of focusing on punishment, it seeks to repair the harm caused, involving victims and the community and acknowledging the responsibility of the person who committed the offense, with the help of a mediator.[23] Some restorative justice mechanisms seek, for example, to elicit shame in those who perpetrated the crimes so that they acknowledge their responsibility and can voluntarily reintegrate into the community that their actions affected.[24]

Footnotes on source page 29

22. Paragraph 4 of transitional Article 1, introduced by Constitutional Amendment 01 of 2017, highlights how the System rests on recognition of victims as holders of rights and on the principle of satisfying victims' rights to truth, justice, reparation and non-repetition. Likewise, transitional Article 13 of Constitutional Amendment 01 of 2017 provides that: "The essential purpose of sanctions imposed by the JEP shall be to satisfy victims' rights and consolidate peace. They must perform the fullest possible restorative and reparative function with respect to the harm caused, always in relation to the degree of acknowledgment of truth and responsibility." See: Congress of the Republic of Colombia, Constitutional Amendment No. 01 of 2017, *By which a title of transitional provisions is created in the Constitution for the termination of the armed conflict and the building of a stable and lasting peace, and other provisions are enacted*, Official Gazette No. 50,196 of April 4, 2017.

23. United Nations, Economic and Social Council, Commission on Crime Prevention and Criminal Justice, *Report of the Secretary-General: Restorative Justice* (2002). Available at: https://www.unodc.org/pdf/crime/commissions/11comm/5add1s.pdf; Rodrigo Iprimny Yepes and María Paula Saffon Sanín, "Transitional Justice and Restorative Justice: Tensions and Complementarities," in *Transitional Justice without Transition?: Truth, Justice and Reparation for Colombia*. Eds. Rodrigo Uprimny Yepes, María Paula Saffon Sanín, Catalina Botero Marino, Esteban Restrepo Saldarriaga, Bogotá D.C., Center for the Study of Law, Justice and Society-DeJusticia (2006), pp. 109-138.

24. John Braithwaite, "Shame and Criminal Justice," *Canadian Journal of Criminology*, no. 42, vol. 3 (2000), p. 282; Anna Myriam Roccatello and Gabriel Rojas, *A Mixed Approach to International Crimes: The Retributive and Restorative Justice Procedures of Colombia's Special Jurisdiction for Peace*, ICTJ Report (2020), p. 13.

Source page 30

Special Jurisdiction for Peace

Restorative justice practices aim to ensure a process in which the parties involved in a particular conflict meet to decide collectively how to address the consequences of the offense, at both the personal and community levels, with a view to the future. In this respect, reparation for harm through participation, deliberation and communication for conflict resolution is one of the main objectives of this way of understanding justice.[25]

Restorative justice can be understood as a collective process for addressing conflicts, in which case restorative practices could complement conventional criminal justice. It can also be considered in terms of its ability to produce outcomes, such as reparation for the harm caused to victims, or as an alternative to prison sentences as punishment for those who committed the acts.[26]

From the perspective of restorative justice as a process, several factors that influence its implementation within a judicial context stand out. These factors can be summarized as follows: the neutrality of the authorities who mediate the conflict; the trust that victims and communities place in those authorities; respect for the parties; and the opportunity they are given to express their aspirations, opinions and resources within the process.[27] Restorative justice also seeks to ensure that the person who committed the acts confronts their conduct and its consequences, and becomes aware of their actions and of the reasons and conditions that led them to commit the offense. In this respect, restorative justice condemns the criminal act. It is in no way a matter of impunity, since it maintains the requirement that the offender

Boundary continuation from source page 31, supplied to complete the sentence: acknowledge their responsibility and seeks the involvement of everyone directly and indirectly affected.

Footnotes on source page 30

25. Tony F. Marshall, *Restorative Justice: An Overview*. Report by the Home Office Research Development and Statistics Directorate (1999), p. 37. Available at: http://www.antoniocasella.eu/restorative/Marshall_1999-b.pdf

26. Op. cit., *Restorative Justice: An Overview*, p. 119; and Randy E. Barnett, "Restitution: A New Paradigm of Criminal Justice," *Ethics*, no. 4, vol. 87 (1977).

27. Ibid., pp. 124-127.

Source page 38

Special Jurisdiction for Peace

Restorative Transitional Justice in the JEP

The preceding section explored the tensions inherent in incorporating restorative justice into transitional justice, particularly the need to implement strategies for collective participation given the large scale of victimization. This section explains how the JEP addresses these tensions within its legal framework and case law, following the provisions of the Final Peace Agreement (AFP) and its constitutional and statutory developments, as reflected in the JEP's decisions.

The JEP's General Rapporteur's Office has identified more than 1,000 decisions of the Jurisdiction related to the expression "restorative justice," of which 35 stand out for their substantive content: 4 from the Constitutional Court, 30 from the JEP's Chambers and Sections, and one opinion from the JEP's Gender Commission. Of these, 10 decisions that offer detailed definitions or concepts of restorative justice in the transitional sphere stand out, providing interpretations and purposes for its application in the Colombian context. Based on the line of case law compiled by the JEP's Rapporteur's Office on restorative justice in the Jurisdiction,[34] the relevant content of these decisions for

this Manual is presented below. The findings of this review will subsequently be summarized by describing the seven pillars of Restorative Transitional Justice in the JEP that govern proceedings at all levels of the Jurisdiction.

Restorative justice is a guiding principle of the JEP and a principle governing its effectiveness. The JEP is also constitutionally and statutorily mandated to apply it within transitional judicial proceedings. Constitutional Amendment 01 of 2017 establishes restorative justice as one of the JEP's guiding paradigms, while its Procedural Law (Law 1922 of 2018) highlights

Boundary continuation from source page 39, supplied to complete the sentence: the effectiveness of restorative justice as one of its principles, the purpose of which - according to Article 4 of the Statutory Law (Law 1957 of 2019) - is to prioritize harmony in restoring relationships within society, restoration of the harm caused, and the guarantee of the rights of future generations.

Footnote on source page 38

34. JEP General Rapporteur's Office. LINE OF CASE LAW. TOPIC: Restorative justice; SUBTOPIC: Restorative dimension of the JEP's procedure.

Source page 46

Special Jurisdiction for Peace

The SRVR has emphasized the consequences of failing to comply with restorative commitments, with expulsion from the Jurisdiction used as a measure in response to renewed involvement in armed activities, as demonstrated in Order SRVR-264 of December 18, 2019. Moreover, in subsequent decisions, such as Order SRVR-019 of January 26, 2021, relating to the hostage-taking case, the JEP reiterated the importance of fostering spaces for dialogue that contribute to victims' grieving process.

Order SRVR-CDG 208 of December 9, 2021, examines the dialogic nature of the process in greater depth, establishing that hearings for acknowledgment of truth and responsibility must not only be public but must also give effect to the principle of dialogue on the basis of four fundamental premises: adopting various restorative approaches; rebuilding relationships as a pillar of restorative justice; the need to actively facilitate victims' participation; and having the entire process guided by the JEP as facilitator. This approach highlights the JEP's commitment to a form of justice that seeks not only to repair harm but also to transform social relationships and contribute to building a sustainable and lasting peace, while also considering gender and differential approaches and an intersectional perspective.

Finally, Order SRVR-080 of May 28, 2019, merits attention. In this decision, the SRVR marked a turning point by significantly expanding the role of accredited victims, particularly in Case 03, with respect to voluntary statements in the proceedings. This order emphasizes that dialogue between victims and appearing parties should be understood as a sequence of interactions that allows dialogue with restorative effects to be built gradually, rather than as a single event within the process. This perspective emphasizes the continuous process of dialogic interaction, highlighting the importance of victims' active and sustained participation in the search for truth and reparation.

Translator's notes

- Printed page boundaries were checked visually against the original PDF: page 29 is on physical PDF page 16, right half; page 30 on physical page 17, left half; page 38 on physical page 21, left half; and page 46 on physical page 25, left half. Physical PDF page numbers are one-based. - The original footnote numbers are 22, 23, 24, 25, 26, 27 and 34. The numbering and bibliographic particulars have been preserved, including the differing spellings "Iprimny" and "Uprimny" in footnote 23 and the source's volume/issue designations in footnote 24. - Opening context from page 28 and continuations from pages 31 and 39 are explicitly labeled and are outside the selected printed pages. The pullout on page 28 is outside the selection; the selected pages contain no pullouts, photographs, figures or captions.

3. Sanctions

Law 1957 of 2019 | Articles 125-126, printed p. 34

Original Spanish PDF

Summary of the cited selection

The purposes a sanction must serve

Article 125 gives JEP sanctions two central purposes: satisfying victims' rights and consolidating peace. The sanction's restorative and reparative function concerns the harm caused, and the law connects that function to the degree of acknowledgment of truth and responsibility made before the JEP. The provision therefore places the sanction within a relationship among the offense, its effects on victims, and the responsible person's acknowledgment. (Printed p. 34, Article 125.)

The article identifies three categories of sanction: own sanctions, alternative sanctions, and ordinary sanctions. It also requires the ruling or judgment to state the sanction's content and place of execution precisely, together with the relevant conditions and effects. These requirements make the judicial response concrete: the decision must specify what is imposed and how it will operate. (Article 125.)

Eligibility, duration, and restrictions for own sanctions

Article 126 develops the category called own sanctions, or *sanciones propias*. It applies to those who acknowledge responsibility and provide exhaustive, detailed, and full truth before the Chamber of Acknowledgment in respect of the very serious offenses described in the provision. The article sets a period of five to eight years for fulfillment of the sanction's reparative and restorative functions. (Article 126, first paragraph.)

The eight-year maximum applies across all own sanctions imposed, including cases involving concurrence of offenses. Own sanctions also entail effective restrictions on freedoms and rights, including residence and movement, as needed for execution. The provision expressly requires a guarantee of non-repetition. Its account of an own sanction thus combines reparative and restorative functions, a defined period, and enforceable restrictions. (Article 126, second paragraph.)

Reading implication

A description of a proposed own sanction can be examined for the acknowledgment on which it rests, the harm its activities address, its duration, and the restrictions attached to its execution. Article 125 supplies the purposes and required specificity of the judicial decision; Article 126 supplies the conditions and principal features of own sanctions.

3. Sanctions

Original Spanish PDF

Law 1957 of 2019

Articles 125-126 · Original printed page 34 · English translation

TITLE IX

SANCTIONS

ARTICLE 125. PURPOSE.

The essential purpose of sanctions shall be to satisfy victims' rights and consolidate peace. They must perform the fullest possible restorative and reparative function with respect to the harm caused, always in relation to the degree of acknowledgment of truth and responsibility made before the Special Jurisdiction for Peace (JEP) through individual or collective statements.

The sanctions imposed by the JEP may be own sanctions (sanciones propias), alternative sanctions or ordinary sanctions. The rulings and judgments issued pursuant to this law shall precisely state the content of the sanction and the place where it is to be carried out, as well as the conditions and effects of sanctions for offenses that are not eligible for amnesty, pardon or equivalent special criminal treatment.

In accordance with the foregoing, this law establishes the following sanctions for those responsible in cases in which it is determined that amnesty, pardon or waiver of criminal prosecution does not apply to them.

ARTICLE 126. OWN SANCTIONS.

The JEP's own sanctions, which shall be imposed on all those who acknowledge responsibility and provide exhaustive, detailed and full truth before the Chamber of Acknowledgment in respect of certain very serious offenses, shall require a minimum of five years and a maximum of eight years for fulfillment of the sanction's reparative and restorative functions.

The maximum period for serving own sanctions, encompassing all sanctions imposed, including cases of concurrence of offenses, shall be eight years. They shall entail such effective restrictions on freedoms and rights, including freedom of residence and movement, as are necessary for their execution, and must also guarantee non-repetition.

Translator's note

In Article 125, the phrase "offenses that are not eligible for amnesty, pardon or equivalent special criminal treatment" reads the source's initial negation as applying to all three forms of treatment. This reading is confirmed by the following paragraph. Apparent typographical errors visible in the supplied source PDF ("Jurisdicción l Especial," the capitalization of "Indultables," and the missing preposition before "los responsables") have been rendered according to their evident meaning. In Article 126, "concurrence of offenses" translates the legal expression concursos de delitos.

4. Harm

Order TP-SeRVR-RC-AI-No.001-2026, Catatumbo | Printed pp. 792-793, including paragraphs 1947-1949

Original Spanish PDF

Summary of the cited selection

Harm as the connection between victim experience and the judicial response

The Catatumbo decision explains why the JEP must characterize harm when assessing acknowledgment and proposed sanctions. The characteristics of victims and the contexts of the violence help explain differentiated impacts. That understanding then informs the assessment of a proposal's capacity to contribute to restoration and reparation. The selection links the study of harm to acknowledgment and the affirmation of victims' dignity. (Printed p. 792, paragraphs 1945-1946.)

Paragraphs 1947-1949 organize the role of harm around three purposes.

1. Assessing the crimes and the patterns of victimization

Characterizing harm helps establish the seriousness, systematic character, and differentiated impact of the crimes. The decision connects this assessment to prioritization, determination of the facts, and selection of those most responsible, from whom acknowledgment will be required. It also treats widespread impacts and shared victim characteristics as a basis for understanding macro-victimization: harm considered across connected experiences and different dimensions, with attention to its systemic nature. (Printed pp. 792-793, paragraph 1947.)

2. Giving acknowledgment a restorative dimension

Acknowledgment requires publicly naming the harm caused. The decision explains that acknowledgment can itself contribute to reparation through satisfaction: victims may encounter an official account that recognizes what the conflict took from them, interrupted, or changed for the worse. Such recognition can honor victims and affirm their experience in a judicial setting. (Printed p. 793, paragraph 1948.)

The same paragraph connects acknowledgment to moral accountability. Appearing parties can be confronted with the pain they caused, and the restorative setting can create possibilities for encounters that contribute to peacebuilding. The relevant acknowledgment concerns the consequences experienced by victims as well as responsibility for the acts. (Paragraph 1948.)

3. Assessing proposals for restoration and reparation

Understanding the nature of harm provides a guide for assessing sanction proposals and subsequently imposing sanctions that contribute to restoration and reparation. The decision emphasizes systemic harm because appearing parties bear an obligation to contribute to repairing it. Characterization of harm therefore gives the proposed response a substantive point of reference. (Printed p. 793, paragraph 1949.)

Reading implication

The three purposes support three linked questions when reading testimony: what harm was experienced and how widely it was shared; how that harm was acknowledged; and how a proposed measure responds to it. These questions are an analytical reading aid drawn from the passage. The source develops the legal reasons for connecting victim experience, acknowledgment, and the assessment of sanctions.

4. Harm

Original Spanish PDF

Order TP-SeRVR-RC-AI-No.001-2026 - Catatumbo

English translation of the complete text on printed pages 792-793, including the heading, paragraph continuations and source footnotes 2364-2372. Paragraphs 1947-1949 are the focal passage.

Printed page 792

SPECIAL JURISDICTION FOR PEACE (JEP) SECTION FOR ACKNOWLEDGMENT OF TRUTH AND RESPONSIBILITY LEGALI CASE NO.: 0001712-48.2022.0.00.0001

Paragraph 1944, continued from printed page 791. Bracketed words supply the preceding sentence context.

[This is exemplified by MAFAPO's role as a] Colombian [organization], composed mostly of women, which fights for truth and justice in relation to cases of "false positives" in the country.[2364]

1945. As will be presented below, recognizing the characteristics of the victims and the contexts of the violence they suffered makes it possible to understand the dimensions of harm and the existence of differentiated impacts. It also provides the interpretive framework for assessing the sanction proposals in this Order and subsequently imposing own sanctions (sanciones propias).

V.3.2 The characterization of harm and its dimensions

1946. The purpose of assessing the extent of harm and characterizing it within the restorative transitional justice system administered by the JEP is linked to acknowledgment, the affirmation of dignity, and the assessment of the reparative and restorative potential of sanction proposals.[2365]

1947. Within the dialogic process of acknowledgment before the SRVR and the SeRVR, understanding harm has at least three main purposes. The first relates to the possibility of assessing the seriousness, systematic nature and differentiated impact of the crimes according to the victims' characteristics, an exercise that must inform prioritization, the determination of facts and the selection of those most responsible, from whom acknowledgment will subsequently be required.[2366] As the SeRVR has clarified, the widespread nature of the impacts and the victims' shared characteristics make it possible to identify phenomena of macro-victimization and frame harm in terms of its systemic nature. That is, as a set of

Footnotes on printed page 792

2364. Founded in 2008, the organization Madres y Familiares de Falsos Positivos [Mothers and Relatives of False Positives] - MAFAPO - seeks to raise awareness of, and obtain justice for, relatives who were presented by the National Army as guerrillas killed in combat, when in fact they had been victims of extrajudicial executions. Organization Madres de Falsos Positivos Soacha y Bogotá [Mothers of False Positives, Soacha and Bogotá] - MAFAPO. Report *The Painful Birth of an Organization*, 2018.

2365. JEP, Executive Secretariat and Office of the President of the JEP, *Manual on Restorative Transitional Justice*, Bogotá, D.C., 2024, p. 45.

2366. Law 1957 of 2019, art. 19(1) and (3), Bogotá, D.C., 6 June 2019; JEP, Subdirectorate for Institutional Strengthening, SEJEP. *Harm and Reparation in the Restorative Justice of the Special Jurisdiction for Peace*, systematization document. Bogotá, D.C., November 2024, p. 9.

SPECIAL JURISDICTION FOR PEACE (JEP) SECTION FOR ACKNOWLEDGMENT OF TRUTH AND RESPONSIBILITY LEGALI CASE NO.: 0001712-48.2022.0.00.0001

Paragraph 1947, continued from printed page 792:

widespread impacts that illustrates common elements among the victims and makes it possible to relate the different dimensions of harm.[2367]

1948. The second refers precisely to the requirement to acknowledge responsibility in its restorative dimension. This entails publicly acknowledging and naming the harm caused. Indeed, acknowledgment is itself a form of contribution to reparation, in its satisfaction dimension:[2368] when victims find descriptions of the consequences of what the conflict took from them, cut short, or changed for the worse, they may find an official setting in which they are honored and receive judicial acknowledgment.[2369] Likewise, in restorative settings, acknowledgment of harm serves as a mechanism for calling appearing parties to moral account - that is, the possibility of confronting them with the pain caused, creating spaces in which to move from reproach to renewed encounters that contribute to peacebuilding.[2370]

1949. Finally, the third refers to understanding the nature of harm as a compass for assessing sanction proposals and subsequently imposing sanctions that contribute to restoration and reparation for that harm.[2371] The SeRVR has stated that identifying systemic harm is of cardinal importance for the purposes of the sanctioning process involving acknowledgment of truth and responsibility, because the appearing parties will bear the obligation to contribute to reparation for that harm.[2372]

1950. In light of these three objectives, the dimensions of harm that the SeRVR will take into account in this judgment of correspondence are presented below. This section represents an effort to bring together the

The sentence and paragraph 1950 continue on printed page 794, outside the selected pages.

Footnotes on printed page 793

2367. SeRVR, Judgment TP-SeRVR-RC-ST-No.001-2025, Bogotá, D.C., 16 September 2025, para. 552.

2368. UN General Assembly, *Basic Principles and Guidelines on the Right to a Remedy and Reparation for Victims of Gross Violations of International Human Rights Law and Serious Violations of International Humanitarian Law*, A/RES/60/147, 16 December 2005, para. 22.

2369. JEP, Subdirectorate for Institutional Strengthening, SEJEP. *Harm and Reparation in the Restorative Justice of the Special Jurisdiction for Peace*, p. 10.

2370. Ibid., p. 11.

2371. JEP, Subdirectorate for Institutional Strengthening, SEJEP. *Harm and Reparation in the Restorative Justice of the Special Jurisdiction for Peace*, p. 12. See also SA-TP, Senit 8 of 2025, Bogotá, D.C., 24 April 2025, para. 283.

2372. SeRVR, Judgment TP-SeRVR-RC-ST-No.001-2025, Bogotá, D.C., 16 September 2025, para. 552.

Translator's notes

The selection begins in paragraph 1944 and ends in paragraph 1950. Only the bracketed wording at the beginning is supplied from printed page 791, so that the opening continuation can be read as a complete sentence. The word order of "widespread impacts" follows English usage across the printed page 792-793 division. No text from printed page 794 has been added.

In the final sentence of paragraph 1949, the antecedent of "sobre éste" is grammatically unclear. The translation preserves the express substantive obligation placed on the appearing parties: to contribute to reparation for systemic harm.